



CHAPTER xlix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Aberdeen Corporation. A.D. 1922
[20th July 1922]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63
Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Aberdeen Corporation Order Confirmation Act 1922. Short title.

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SCHEDULE.

ABERDEEN CORPORATION.

Provisional Order to authorise the Corporation of the City and Royal Burgh of Aberdeen to construct additional tramways and a new street or road to borrow further moneys for street works and the extension of the esplanade and for the tramway and gas undertakings and to make provision for other purposes.

WHEREAS the lord provost magistrates and town council of the city and royal burgh of Aberdeen (hereinafter called "the Corporation" and "the city" respectively) own and work tramways within the city :

And whereas the Corporation have acquired for behoof of the common good of the city the lands known as the Hazlehead Estate lying adjacent to the city and it is expedient to extend the tramway service of the Corporation from the Rubislaw terminus to the Hazlehead Estate by means of Tramway No. 1 and the tramroad by this Order authorised :

And whereas it is expedient to grant to the Corporation renewed powers for the construction of Tramways Nos. 2 and 3 hereinafter described the powers for which were previously granted by the Aberdeen Corporation Order 1915 but expired before they were carried into execution :

And whereas by the Aberdeen Corporation Order 1915 the Corporation were authorised to run omnibuses within the city and on a route outside the city and the running of omnibuses by the Corporation on the additional route outside the city specified in this Order would be of public and local advantage :

And whereas by the Aberdeen Corporation Order 1907 the Corporation were authorised to acquire the Old Town or King's Links and to maintain the same as a public park and place for public resort and recreation and they were authorised to make two new streets or roads (Works Nos. 1 and 2) for providing convenient access to the said links and to maintain extend and improve the esplanade along the seashore opposite the said links :

And whereas the Corporation have acquired the said Old Town or King's Links and now maintain the same for the purposes of resort and recreation and have made the said new street or road (Work No. 1) but have not made the said new street or road (Work No. 2) and the powers for making the same have expired : A.D. 1922.

And whereas the Corporation have not completed the extension of the esplanade as authorised by the Aberdeen Corporation Order 1907 :

And whereas it is expedient that renewed powers for the making of the said new street or road (Work No. 2) authorised by the Aberdeen Corporation Order 1907 should be granted to the Corporation and that they should be authorised to borrow further moneys for that purpose and for the extension of the esplanade and for the further improvement of the King's Links.

And whereas it is expedient that the Corporation should be authorised to provide further moneys for the repaving and recausewaying of existing streets and for the making of new streets within the city :

And whereas the Corporation are the authority for the supply of gas within the city and adjacent districts and new buildings and plant for the manufacture and distribution of gas are required to enable the Corporation to meet the demand for gas within their area of supply :

And whereas the Corporation are the authority for the supply of water within the city and it is expedient that further provision should be made with respect to the charges for the supply of water for certain purposes and with respect to the maintenance of water pipes and fittings :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned and such estimates are as follows :—

For the construction of the tramways	£
and tramroad authorised by this	
Order and the acquisition of lands	
therefor	112,500
For the electrical equipment of the	
tramways and tramroad and the pro-	
vision of tramway rolling stock	62,000
For and in connection with the provision	
and running of omnibuses	30,000

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For the laying down of double in place of existing single lines of tramways -	£ 12,500
For the construction of buildings in connection with the tramway undertaking - - - - -	50,000
For repaving and recausewaying existing streets - - - - -	15,000
For forming and laying out new streets within the city - - - - -	35,000
For the construction of the new street or road authorised by this Order -	14,000
For the extension of the esplanade -	39,000
For the erection of buildings and plant for gasworks purposes - - -	170,000
For gas mains and service pipes - -	20,000
For consumers' meters - - -	35,000
For cooking and heating appliances -	25,000

And whereas the several works and purposes mentioned in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient that the Corporation should be authorised to borrow further moneys for the before-mentioned purposes and for the purpose of paying the costs of preparing for and obtaining and confirming this Order :

And whereas by the Aberdeen Reformatories and Industrial Schools Act 1885 a board of directors was constituted for the maintenance and management of the reformatories and industrial schools within the city and the Corporation were authorised to appoint directors to the said board and further provision was made with respect to the constitution of the said board by an Order of the Secretary for Scotland dated October 8 1909 under section 132 of the Children Act 1908 :

And whereas by section 25 of the said first-mentioned Act the directors were empowered to appoint a clerk and a treasurer and other officers for executing the purposes of the said Act but by section 26 of the said Act it was provided that the person who was appointed to the office of clerk and the partners of the clerk and all persons in the service or employment of the clerk and of his partners should not be eligible to be

And it was further provided that the person who was appointed to the office of treasurer and the partners of the treasurer and all persons in the service or employment of the treasurer and of his partners should not be eligible to be clerk : A.D. 1922.
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And whereas it is expedient that the said section 26 should be repealed :

And whereas plans and sections showing the lines and levels of the proposed tramways and tramroad and the new street or road and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands which may be used for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerks of the counties of Aberdeen and Kincardine :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PART I.

PRELIMINARY.

1. This Order may be cited as the Aberdeen Corporation Order 1922 and this Order and the Aberdeen City Acts 1862 to 1921 may be cited together as the Aberdeen City Acts 1862 to 1922. Short and collective titles.

This Order and the Aberdeen Corporation Tramways Acts 1872 to 1915 may be cited together as the Aberdeen Corporation Tramways Acts 1872 to 1922.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Tramways and Tramroad.

Part III.—Omnibuses.

Part IV.—New Street or Road.

Part V.—Water.

Part VI.—Finance.

Part VII.—Miscellaneous.

Division of
Order into
Parts.

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Interpre-
tation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction and the following expressions in this Order shall have the meanings assigned to them in this section :—

“ The city ” means the city and royal burgh of Aberdeen :

“ The Corporation ” means the lord provost magistrates and town council of the city :

“ The Act of 1891 ” means the Aberdeen Corporation Act 1891 :

“ The City Acts ” means the Aberdeen City Acts 1862 to 1921 :

“ The tramways ” means the tramways hereinafter described and authorised by this Order :

“ The Tramways Acts ” means the Aberdeen Corporation Tramways Acts 1872 to 1915 :

“ The tramroad ” means the tramroad hereinafter described and authorised by this Order :

“ The route authorised in nineteen hundred and fifteen ” means the motor omnibus route described in section twenty-six of the Aberdeen Corporation Order 1915 :

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878 :

“ The sheriff ” means the sheriff of Aberdeen Kincardine and Banff and includes his substitutes.

In the Acts incorporated with this Order unless there be something repugnant to such construction the expression “ the undertakers ” means the Corporation.

Incorpora-
tion of Acts.

4. The following parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order :—

The Lands Clauses Consolidation (Scotland) Act 1845 except section 120 (relating to the sale of superfluous lands) :

Section 3 (Interpretation of terms) Part II (Construction of tramways) and Part III (General provisions) of the Tramways Act 1870.

5. This Order shall come into operation at the date of the passing of the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order."

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Commence-
ment of
Order.

PART II.

TRAMWAYS AND TRAMROAD.

6. Subject to the provisions of this Order and of Parts II and III of the Tramways Act 1870 the Corporation may make form lay down work use and maintain the tramways and tramroad hereinafter described in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections with all necessary and proper rails chairs plates channels junctions sidings crossovers passing-places points turntables turnouts and conveniences connected therewith Provided that nothing in this Order shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1919 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Power to
Corporation
to make
new tram-
ways and
tramroad.

The tramways and tramroad hereinbefore referred to and authorised by this Order are—

Tramway No. 1 (double line) 1 mile 0 furlong 0·6 chain in length wholly within the city and the city parish of Aberdeen commencing in Queen's Road by a junction with the existing tramways of the Corporation at the Rubislaw terminus passing thence along Queen's Road and terminating in that road at the boundary of the city at Hazlehead :

A tramroad (double line) 3 furlongs 9·2 chains in length partly within the city and the city parish of Aberdeen and partly within the parish of Newhills and the county of Aberdeen commencing in Queen's Road by a junction with Tramway No. 1 at a point 109 yards or thereabouts north-west from the second milestone on that road passing thence along Queen's Road to a point on

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the south side of that road 133 yards or thereabouts north-west from the said milestone thence south-westwards along the wooded and arable land on the south side of the avenue to Hazlehead and terminating at a point 30 yards or thereabouts east from the west entrance lodge at Hazlehead :

Tramway No. 2 (double line) 6 furlongs 1·42 chains in length wholly within the city and the city parish of Aberdeen commencing by a junction with the existing tramways of the Corporation in Holburn Street at a point 5 yards or thereabouts south of Alford Lane passing thence along Holburn Street Union Grove St. Swithin Street Queen's Cross and Fountainhall Road and terminating in Fountainhall Road by a junction with the existing tramways of the Corporation at a point 52 yards or thereabouts south from Queen's Lane :

Tramway No. 3 (double line) 5 furlongs 0·33 chain in length wholly within the city and the city parish of Aberdeen commencing by a junction with the existing tramways of the Corporation in Victoria Road at a point 17 yards or thereabouts north from Menzies Road passing thence along Victoria Road Menzies Road and Wellington Road and terminating in the last-mentioned road at the boundary of the city.

Additional
provisions
as to con-
struction of
Tramway
No. 2.

7. For the protection of the City Property Association of Aberdeen Limited the owners or reputed owners of certain property at the junction of Holburn Street and Union Grove the following provisions shall apply and have effect (that is to say) :—

Notwithstanding anything shown on the deposited plans the Corporation shall with the consent of the Minister of Transport and subject to the provisions of this Order construct that portion of the Tramway No. 2 between its commencement in Holburn Street and a point in Union Grove opposite a continuation of the imaginary centre line of the unnamed public lane connecting Union Grove and Albyn Lane so that the space between the outside of the foot-pavement on the north side of Union Grove and the nearest rail of the

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tramway shall not be less at any part than seven feet eight inches Provided that in the event of such consent being given by the Minister of Transport subject to any modification or condition effect shall be given to such modification or condition in the construction of the said portion of Tramway No. 2 Provided further that in the event of such consent not being given the said portion of Tramway No. 2 shall be constructed as shown on the deposited plans.

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8.—(1) The sections of the Tramways Acts mentioned in the First Schedule to this Order shall so far as not varied by or inconsistent with the provisions of this Order extend and apply to the tramways.

Application of provisions of existing Acts to tramways.

(2) In the exercise of the powers of section 23 (Power to construct subsidiary works for working tramways by mechanical power) of the Aberdeen Corporation Tramways Act 1900 for the purposes of this Order no pole post or other apparatus shall be erected in the carriageway of any road without the consent of the Minister of Transport.

9. The provisions contained in and incorporated with this Order with respect to the construction maintenance and use of the tramways shall apply to the tramroad but those provisions which are applicable only to a tramway laid upon a street or road shall not apply to such portion of the tramroad as will be laid down and maintained elsewhere than on a street or road.

Application of tramway provisions to tramroad.

10. The tramways and the tramroad shall be completed within seven years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of tramways and tramroad.

11. The tramways and the tramroad shall for all purposes form part of the tramway undertaking of the Corporation and the Corporation may subject to the provisions of the Tramways Acts work the traffic thereon and levy and take tolls fares and charges for the use thereof.

Tramways and tramroad to form part of tramway undertaking.

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Tramways
and tram-
road part of
city under-
taking.

12. The tramways and the tramroad shall be and be deemed to be and be maintained as a city undertaking within the meaning of the Act of 1891 and this Order shall be and be deemed to be a City Act within the meaning of the Act of 1891.

PART III.

OMNIBUSES.

Definition
of road
authority.

13. For the purposes of this Part of this Order the expression "road authority" means with reference to any road or bridge with the immediate approaches thereto or any part thereof over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or bridge with the immediate approaches thereto or any part thereof.

Power to
run
omnibuses.

14.—(1) Subject to the provisions of this Order the Corporation may provide or maintain (but shall not manufacture) and may run omnibuses along the following route outside the city :—

In the parishes of Nigg Banchory-Devenick and Maryculter and county of Kincardine commencing at the city boundary in Wellington Road thence along Wellington Bridge (Nigg) Road the road from Craiginches to Bridge of Dee and South Deeside Road and terminating at the bridge over the Burn of Maryculter;

and with the consent of the Minister of Transport and the local authority of the district along any other route outside the city not extending beyond a radius of ten miles measured from the Market Cross of the city Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport Provided also that the Corporation shall not run omnibuses along any such other route outside the city so as to compete with or injuriously affect any railway tramway light railway or omnibus service existing at the date on which such running is commenced or proposed to be commenced by the Corporation.

(2) In the case of any application under the provisions of this section for the consent of the Minister of Transport the Corporation shall give notice in writing of their proposals to the road authority (where it is not also the local authority) and shall publish notice of such proposals in the Edinburgh Gazette and in such other manner as the Minister of Transport shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person or the consent of the local authority is withheld the Minister of Transport may direct an inquiry to be held. A.D. 1922.

(3) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands acquired by them under this subsection.

(4) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Corporation shall perform in respect of the omnibuses provided under this section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(6) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways.

(7) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon such omnibuses or in or against any premises held by the Corporation in connection therewith.

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Adaptation
of roads.

15.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road it shall be determined by agreement between the Corporation and the road authority or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Order of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run omnibuses over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in

respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened. A.D. 1922.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(2) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(3) Nothing in this section shall impose or enlarge any obligation upon any railway or canal company to maintain strengthen adapt alter or reconstruct any bridge with the immediate approaches and all other necessary works connected therewith maintainable by them.

16.—(1) The powers of running omnibuses under the provisions of this Order on any road or part of a road outside the city may at the expiration of ten years from the date on which such running commences and at the expiration of any subsequent period of ten years be determined by the Minister of Transport on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine. As to cesser of powers.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

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Provision in
 event of
 certain
 powers not
 being
 exercised
 within
 prescribed
 limits.

17. If the Corporation do not within a period of three years from the commencement of this Order provide a service of omnibuses on the route described in the section of this Order of which the marginal note is "Power to run omnibuses" or having provided shall discontinue such service the Minister of Transport may on the application of any local authority within whose district the route or any part of the route is situate and after considering any representation which may be made on behalf of the Corporation by order declare that unless a service of omnibuses be provided within such period as the Minister of Transport may by such order prescribe the powers of the Corporation under this Order in respect of the provision and running of omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Order in relation to the provision and running of omnibuses on such route or part of a route shall cease. Provided that this section shall not apply or have effect in the event of the failure of the Corporation to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

Restrictions
 on powers
 of running
 omnibuses.

18. Notwithstanding anything contained in this Order the Corporation shall not under or by virtue of the powers and provisions of this Order—

- (a) run any omnibuses between the thirtieth day of September in any year and the first day of May in the next following year; or
- (b) carry any passenger on any omnibus route otherwise than at a through fare on a circular or continuous route; or
- (c) take up or set down any passenger on or from any omnibus at any point outside the city.

Fares and
 charges.

19.—(1) Subject to the provisions of this section the Corporation may demand and take for passengers carried on the omnibuses authorised by the Aberdeen Corporation Order 1915 and this Order fares not exceeding such maximum fares as may from time to time be approved by the Minister of Transport. Any application for a revision of such maximum fares may be made by the

Corporation or by the local authority of any district in which such omnibuses are run So much of section 26 of the Aberdeen Corporation Order 1915 as relates to fares rates and charges for the conveyance of passengers in motor omnibuses is hereby repealed. A.D. 1922.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(3) The fares authorised by this Order shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares appoint.

20.—(1) Subject to the provisions of this Order the Corporation and any other local authority company body or person for the time being empowered to provide or run omnibuses in any district in which any of the omnibus routes authorised by or under the provisions of this Order or the Aberdeen Corporation Order 1915 are situate may enter into and carry into effect agreements for all or any of the following purposes (that is to say) :— Working and other agreements.

(a) The working user management and maintenance of all or any of the omnibus services which the contracting parties are authorised to provide and run and of any omnibuses lands depôts buildings sheds and property provided by either of the contracting parties and of the right to provide and use the same and to demand and take the fares and charges authorised in respect of such omnibuses :

(b) The supply by any of the contracting parties under and during the continuance of any such agreement of omnibuses and conveniences in connection therewith necessary for the purpose of such agreement and the employment of officers and servants :

(c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any omnibus service of the contracting parties :

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(d) The payment collection and apportionment of the fares and charges and other receipts arising from any such omnibus services of the contracting parties.

(2) The Corporation shall not enter into or carry into effect any agreement (other than with a local authority) under the provisions of this section in relation to any omnibus service lands depôts buildings sheds or property beyond the city otherwise than with the consent of the local authority of the district within which such omnibus service lands depôts buildings sheds or property are situate Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.

Shelters or
waiting-
rooms.

21. The Corporation may erect and maintain sheds shelters or waiting-rooms and gangways for the accommodation of passengers on any omnibus route within the city or on the route authorised in nineteen hundred and fifteen and may use for that purpose portions of the public streets or roads subject so far as respects any street or road beyond the city to the consent of the road authority.

Cloakrooms
&c.

22. The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connection with their omnibus undertaking and at suitable places on any of their omnibus routes within the city or on the route authorised in nineteen hundred and fifteen and the Corporation may make charges for the use of such cloakrooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of the highway without the consent of the road authority.

Power to
require
intending
passengers
to wait in
lines or
queues.

23. For the better regulation of persons desiring to travel in the omnibuses of the Corporation the Corporation may erect and maintain barriers and posts at any stopping-place or terminus within the city or on the route authorised in nineteen hundred and fifteen and for that purpose may with the consent of the road authority

use part of the highway and the Corporation may make byelaws requiring persons waiting to enter omnibuses at any stopping-place or terminus upon any of their omnibus routes to wait in lines or queues and to enter such omnibuses in the order in which they stood in such line or queue. A.D. 1922.

24. The Corporation may appoint the stations and places from which the omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers within the city or on the route authorised in nineteen hundred and fifteen and may make regulations for fixing the time during which such omnibuses shall be allowed to remain at any such place subject so far as respects any place beyond the city to the approval of the road authority. Stopping and starting places.

25. Notwithstanding anything contained in the sections of this Order of which the marginal notes are respectively "Shelters or waiting rooms" "Cloakrooms &c." "Power to require intending passengers to wait in lines or queues" and "Stopping and starting-places" the Corporation shall not erect any cloakroom room shed barrier or post or appoint any station or place so as to obstruct or render less convenient the access to or exit from any station or depôt of the Caledonian or Great North of Scotland Railway Companies. For protection of Caledonian and Great North of Scotland Railway Companies.

26. All byelaws under this Part of this Order shall be made subject to and in accordance with the provisions of the Tramways Act 1870 with respect to the making of byelaws and shall in so far as any byelaw applies to any place beyond the city be subject to the approval of the local authority. Confirmation of bye-laws.

27.—(1) The Corporation may with the consent of the Minister of Transport and the local and road authorities erect poles standards or other similar erections on or in the highway on or near to the route of any of their omnibuses within the city or in or near to the route authorised in nineteen hundred and fifteen and may attach thereto signs or directions indicating the position of stopping-places on such routes or the Corporation may attach to any existing lamp-post pole standard or other similar erection on or in the highway on or near Attachment of signs indicating stopping-places to lamp-posts &c.

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A.D. 1922. — to the route of any of such omnibuses such signs or directions :

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to any railway company except with their consent in writing.

(5) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or any similar erection belonging to any local authority beyond the city without their consent which consent shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport.

Lopping
of trees
overhanging
highways.

28.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to the sheriff under the Summary Jurisdiction (Scotland) Acts within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the sheriff shall have power to make such order as he may think fit and to award expenses such expenses to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section. A.D. 1922.

29. Any property found in any omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the tramway undertaking of the Corporation. Lost property.

30. The undertaking authorised by this Part of this Order shall be deemed to form part of the tramway undertaking of the Corporation Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with omnibuses shall (as far as may be reasonably practicable) be distinguished from the receipts and expenditure in connection with the remainder of such undertaking. Omnibuses to be part of tramway undertaking.

31. The Corporation shall furnish to the Minister of Transport the annual accounts of their tramway undertaking including the annual accounts relating to their omnibuses. Annual accounts to be furnished to Minister of Transport.

PART IV.

NEW STREET OR ROAD.

32. Subject to the provisions of this Order the Corporation may make and maintain in the lines and according to the levels shown upon the deposited plans and sections the new street or road hereinafter described or some part or parts thereof with all proper works and conveniences connected therewith (that is to say):— Power to Corporation to make new street or road.

A new street or road commencing in King Street at a point twenty-four yards or thereabouts south

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from the south end of the Bridge of Don and terminating at the Old Town or King's Links at a point one hundred and eleven yards or thereabouts south of a line drawn for a distance of four hundred and seventy-eight yards or thereabouts due east from the point of commencement.

Vesting of
new street
or road.

33. The new street or road authorised by this Order shall after the completion thereof be and become vested in the Corporation to the same extent and effect as the other streets or roads within the city are now vested in them.

Power to
make
subsidiary
works.

34. Subject to the provisions of this Order and within the limits defined on the deposited plans the Corporation in connection with the new street or road by this Order authorised and for the purposes thereof may make junctions and communications with any existing streets or roads which may be interfered with or be contiguous to the said new street or road and may make diversions widenings or alterations of lines or levels of any existing streets or roads for the purpose of connecting the same with the said new street or road or otherwise.

Corpora-
tion to form
sewers
drains &c.

35. The Corporation may cause such parts of the new street or road authorised by this Order to be laid out and formed for carriageways and such parts thereof for foot passengers as they may think fit and may construct erect and provide thereon or thereunder or connected therewith such vaults cellars arches sewers drains conduits for pipes and wires and other works and conveniences as they may think proper.

Period for
completion
of new
street or
road.

36. If the new street or road described in and authorised by this Order is not completed within three years from the commencement of this Order then on the expiration of that period the powers by this Order granted for making and completing the said new street or road or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

PART V.

WATER.

Rents for
hire of

37. Nothing contained in section 50 (Additional provision as to water rates) of the Aberdeen Corporation Water

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Order 1916 or in section 21 (Extending period for revenue reserve fund and increasing amount) of the Aberdeen Corporation Order 1920 shall prohibit the Corporation from imposing such conditions and demanding and recovering (a) such rents for the hire of meters for the supply of water by measure and (b) such annual minimum charges for the supply of water by measure as the Corporation may from time to time prescribe or fix Provided that such annual minimum charges shall not during the period specified in the said sections exceed the sum of two pounds ten shillings for the supply of water through each and every meter.

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meters and
minimum
charges.

38. Notwithstanding anything contained in any of the City Acts a supply of water for domestic purposes shall not include a supply of water for any trade or business or a supply of water for horses or for washing or other use in connection with vehicles whether such horses or vehicles are kept for private or for commercial use.

What shall
be deemed
domestic
purposes.

39. Where water is supplied to any private motor garage otherwise than by meter the Corporation may charge in addition to any water rates which they are authorised from time to time to charge such sum not exceeding twenty shillings per annum as they may consider proper for each motor car or motor vehicle housed which sum shall include the charge for the use of a hose.

Supply of
water to
motor
garages.

40.—(1) If by reason of any injury to or defect in any communication pipe or water fittings which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to any person or property the Corporation may by and under the direction of their duly authorised officer cause to be executed such repairs as may be necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier Provided that such repairs shall not be executed by any person in the employment of the Corporation.

Power to
Corpora-
tion to
repair com-
munication
pipes.

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(2) Provided also that except in cases of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner or occupier (if the communication pipe is repairable by him) of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Mainten-
ance of
common
pipe.

41. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners of such houses or parts of houses the several owners shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Corporation waterworks department or other officer duly authorised in that behalf by the Corporation.

Penalty for
closing
valves or
apparatus.

42. Every person who shall wilfully without the consent of the Corporation or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall without prejudice to any other right or remedy of the Corporation be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

PART VI.

FINANCE.

Further
borrowing
powers.

43. The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods from the date or dates of borrowing (each of which is in this Order referred to as

“the prescribed period”) mentioned in the fourth A.D. 1922.
column thereof (namely):—

1. Purpose.	2. Amount.	3. Charge.	4. Period for Repay- ment.
For the construction of the tramways and tramroad authorised by this Order and the acquisition of lands therefor.	£ 112,500	The revenues of the tramway under- taking and the city rate.	30 years.
For the electrical equipment of the tramways and tramroad and the provision of tramway rolling stock.	62,000	The same - -	20 years.
For and in connection with the provision and running of omnibuses.	30,000	The same - -	7 years.
For the laying down of double in place of existing single lines of tramways.	12,500	The same - -	30 years.
For the construction of buildings in connection with the tramway under- taking.	50,000	The revenues of the tramway undertaking and the city rate.	35 years.
For repaving and recause- waying existing streets.	15,000	The city rate -	15 years.
For forming and laying out new streets.	35,000	The same - -	50 years.
For the construction of the new street or road autho- rised by this Order.	14,000	The same - -	50 years.
For the extension of the esplanade.	39,000	The same. - -	40 years.
For the erection of buildings and plant for gasworks purposes.	170,000	The rents charges and revenues of the gas under- taking and the Aberdeen gas c o n t i n g e n t guarantee rate.	30 years.
For gas mains and service pipes.	20,000		40 years.
For consumers' meters -	35,000		10 years.
For cooking and heating appliances.	25,000		10 years.
For paying the costs charges and expenses of this Order.	The sum requisite.		5 years from the commence- ment of this Order.

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Repayment
of moneys
borrowed.

44. The Corporation shall make provision for the repayment of the moneys borrowed under this Order within the prescribed periods by one or other of the following methods as they may see fit (that is to say) either by repaying an equal portion of principal every year or by means of equal annual instalments of principal and interest or by means of an accumulating sinking fund.

Borrowing
powers
under this
Order to be
deemed
borrowing
powers
under Act
of 1891.

45. For the purposes of the Act of 1891 the powers by this Order granted to the Corporation to borrow moneys shall be deemed a borrowing power of the Corporation within the meaning of the Act of 1891 and may be exerciseable by the Corporation as if those borrowing powers had been a borrowing power of the Corporation under the Act of 1891 and the provisions of Part IV (Borrowing and Corporation Stock) of that Act shall apply to the borrowing powers by this Order granted to the Corporation and this Order shall be deemed one of the City Acts specified in the Act of 1891.

Power to
reborrow.

46.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid— A.D. 1922.
—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

47. All moneys borrowed by the Corporation under this Order shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable. Application of moneys borrowed.

PART VII.

MISCELLANEOUS.

48. Subject to the provisions of this Order the Corporation may enter upon take and use for the purposes of this Order all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Compulsory acquisition of lands.

49. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after three years from the commencement of this Order. Period for compulsory purchase of lands.

50. In the construction of the works (other than the tramways) by this Order authorised the Corporation may deviate laterally to any extent not exceeding the limits of deviation defined on the deposited plans and they may deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet. Provided that in the event of any vertical deviation exceeding two feet the Corporation shall pay compensation to any person who may be injuriously affected by such increased deviation. Limits of lateral and vertical deviation.

51. Any lands purchased or taken by the Corporation and laid out into any street shall thereafter form part of such street and be a public highway. Land thrown into streets to be public highway.

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Correction
of errors in
deposited
plans and
book of
reference.

52. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff-clerks of the counties of Aberdeen and Kincardine and a duplicate thereof shall also be deposited with the town clerk of the city and such certificate and duplicate respectively shall be kept by such sheriff-clerks and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may enter upon take and use the lands and execute the works in accordance with such certificate.

Amendment of
Aberdeen Re-
formatories and
Industrial
Schools Act
1885.

53. Section 26 (Separation of offices of clerk and treasurer) of the Aberdeen Reformatories and Industrial Schools Act 1885 is hereby repealed.

Confirma-
tion of
agreement
as to
construc-
tion of road.

54. The minute of agreement between the Corporation on the one part and the Corporation of the Royal Infirmary and Lunatic Asylum of Aberdeen and the Trustees of the late Mrs. Charlotte Monro or Sim of Cornhill on the other part set forth in the Second Schedule to this Order is hereby confirmed and made binding on the parties thereto.

Application
of Board of
Trade
Arbitrations
&c. Act
1874.

55. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Order the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the Secretaries of the Board."

56. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree.

A.D. 1922.
 Crown
 rights.

57. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of moneys to be borrowed for that purpose under this Order or out of the public rates or municipal revenues of the city.

Costs of
 Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

SECTIONS OF THE TRAMWAYS ACTS WHICH ARE APPLIED TO THE TRAMWAYS AUTHORISED BY THIS ORDER.

Date of Act or Order and marginal note of Section.	Number of Section.
The Aberdeen District Tramways Act 1888—	
Gauge of tramways - - - - -	12
Carriages constructed for use on railways not to be used - - - - -	13
Tramways to be kept level with surface of roads -	15
Penalty for not maintaining tramways - - -	16
Company may be required to use improved rails -	20
Temporary tramways may be made when neces- sary - - - - -	22
Agreements between the Company and road authorities - - - - -	26
Byelaws - - - - -	31
Amendment of the Tramways Act 1870 as to bye- laws by local authority - - - - -	33
Orders and byelaws - - - - -	34
The Aberdeen District Tramways Act 1894—	
Cheap fares for labouring classes - - - - -	14
As to fares on holidays and Sundays - - - - -	15
Periodical revision of tolls - - - - -	16
Provisions as to use of electric power - - -	18
Provision as to general Tramway Acts - - -	20

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Date of Act or Order and marginal note of Section.	Number of Section.
The Aberdeen District Tramways Order 1896—	
Provisions as to construction of tramways -	6
The Aberdeen Corporation (Tramways) Act 1898—	
Annual estimate for tramways - - -	30
The Aberdeen Corporation Tramways Act 1900—	
Penalty for damage to tramways - - -	21
Provisions as to motive power - - -	22
Power to construct subsidiary works for working tramways by mechanical power - - -	23
Mechanical power works to be subject to section 30 of Tramways Act 1870 - - -	24
Power to make byelaws &c. to facilitate traffic -	26
Penalties for offences against byelaws &c. -	27
Confirmation of byelaws &c. by sheriff -	28
Notice of confirmation of byelaws &c. -	29
The Aberdeen Corporation Tramways Order 1903—	
Power to break up streets &c. - - -	7
Rails of tramways - - -	8
Crossovers to be constructed in certain cases -	9
Power to make additional crossings and to double tramway lines - - -	10
Inspection by Board of Trade - - -	13
For protection of Postmaster-General - -	16
Penalty for malicious damage - - -	17
Recovery of penalties - - -	18
Attachment of brackets to buildings - -	19
The Aberdeen Corporation Order 1915—	
Use of tramway posts by Postmaster-General -	25

THE SECOND SCHEDULE.

MINUTE OF AGREEMENT between the LORD PROVOST
MAGISTRATES AND TOWN COUNCIL OF THE CITY
AND ROYAL BURGH OF ABERDEEN acting under the
Aberdeen Police and Waterworks Act 1862 and
Acts extending and amending the same (hereinafter
referred to as “the Town Council”) on the one part
and the CORPORATION OF THE ROYAL INFIRMARY
AND LUNATIC ASYLUM OF ABERDEEN incorporated
by the Aberdeen Royal Infirmary and Lunatic
Asylum Act 1887 as proprietors of the lands of

A.D. 1922.

Ashgrove and others in the City of Aberdeen (hereinafter referred to as "the proprietors of Ashgrove") and the Trustees of the late MRS. CHARLOTTE MONRO or SIM of Cornhill Aberdeen as proprietors of the lands of Cornhill in the City of Aberdeen (hereinafter referred to as "the proprietors of Cornhill") on the other part.

The parties hereby agree as follows :—

1. The Town Council with the assistance of a State grant from the Unemployment Grants Committee to construct a road (hereinafter referred to as "the new road") 50 feet wide in continuation of Westburn Drive from Cornhill Road through the properties of Cornhill and Ashgrove to Back Hilton Road as shown upon the plan annexed and signed as relative hereto.

2. The excambion of ground between the proprietors of Cornhill and the proprietors of Ashgrove to be carried out as shown on the plan so that the new road may be bounded on the west by Cornhill and on the east by Ashgrove and by other ground sometime part of Cornhill now belonging to the proprietors of Ashgrove.

3. The two proprietors to give from their respective properties the ground required for the solum of the road free of charge.

4. The Town Council to relieve the proprietors of Cornhill and the proprietors of Ashgrove of all claims by their tenants arising from the construction of the new road and the extension of Ashgrove Road after-mentioned including any claim by the present tenants of the piece of ground marked green on the plan and of the ground on which the new road and said extension are to be constructed.

5. The Town Council to construct the new road including an extension 50 feet in width of Ashgrove Road from Elmhill Road to the new road in accordance with the plan and the longitudinal sections approved of by the proprietors of Cornhill and the proprietors of Ashgrove and signed by the parties as relative hereto.

6. The Town Council to erect along both sides of the new road from Cornhill Road to Back Hilton Road a suitable open wood or wire fence of a design and character to be approved of by the respective proprietors concerned the fence on the west side to belong to the proprietors of Cornhill and on the east side to the proprietors of Ashgrove and be maintained by the respective proprietors The Town Council also to erect a like fence along both sides of said Ashgrove Road extension to belong to and be maintained by the proprietors of Ashgrove.

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7. The Town Council to take the requisite steps for having Elmhill Road shut up and the solum of that road conveyed to the proprietors of Ashgrove and Cornhill to the extent to which that road may lie within their respective boundaries after the completion of the new road.

8. The obligations imposed upon the proprietors of Ashgrove under the disposition granted in their favour by the trustees of the late James Sim of Cornhill dated in 1898 with regard to the formation of the new road therein referred to and erection of boundary walls to be discharged by the execution of this agreement.

9. The proprietors of Ashgrove to contribute £500 towards the cost of the new road and of the said extension. The contribution to be payable when the solum of Elmhill Road so far as situated within their boundary has been vested in them.

10. The new road to be continued north-eastwards under agreement with the proprietors of Hilton to connect with Hilton Street so as to form a continuous thoroughfare from Cornhill Road to Clifton Road.

11.—(1) The Town Council to relieve the proprietors of Ashgrove of all and every part of the expense of making paving causewaying maintaining and keeping in repair the new road and the extension of Ashgrove Road and the footways pavements and water channels thereof until in the case of the new road one-third of the frontage areas on the east side of the road and in the case of Ashgrove Road extension one-third of the frontage areas on both sides of the road shall have been built upon or sold or feued out for the purpose of being built upon.

(2) The Town Council to relieve the proprietors of Cornhill of all and every part of the expense of making paving causewaying maintaining and keeping in repair the new road and the footways pavements and water channels thereof until one-third of the frontage areas on the west side of the road shall have been built upon or sold or feued out for the purpose of being built upon.

12. This agreement which is made subject to such alterations as Parliament or the Secretary for Scotland may think fit to make therein shall be scheduled to and confirmed by the Aberdeen Corporation Order 1922 which the Town Council are promoting in the present Session of Parliament but in the event of either House of Parliament or the Secretary for Scotland making any material alteration therein either of the parties may withdraw from the agreement.

In witness whereof these presents printed on this and the preceding page of stamped paper the plan hereto annexed and the separate plan showing longitudinal sections are all signed by the parties hereto on the under-mentioned days of March nineteen hundred and twenty-two as follows viz. Are on behalf of the

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proprietors of Ashgrove sealed with the common seal of the said Corporation and subscribed by Robert Williamson Walker civil engineer and William Garden advocate both in Aberdeen members of the asylum board of directors of the said Corporation and Andrew Scott Finnie the clerk of the said board all at Aberdeen on the eighteenth before these witnesses Hilda Cornwell Crombie typist and Jean Melvin Mackie clerkess both in Aberdeen to Walker and Duncan civil engineers there Are in terms of the Aberdeen Municipality Extension Act 1871 subscribed on behalf of the town council by William Meff the lord provost Henry John Gray the senior baillie and William Gordon the town clerk all of the said City and Royal Burgh of Aberdeen and sealed with the common seal of the town council of the said Burgh all at Aberdeen on the twentieth before these witnesses Frederick Douglas assistant in the town clerk's office Aberdeen and Charles Ross town sergeant Aberdeen And are on behalf of the proprietors of Cornhill subscribed by the trustees of the said deceased Mrs. Charlotte Monro or Sim as follows By James Hastings Edwards advocate in Aberdeen at Aberdeen also on the twentieth before these witnesses Stewart Salmond Buyers solicitor Aberdeen and Norman Sutherland Rose law apprentice to Edmonds and Ledingham advocates there and by John Milne Henderson local manager in Edinburgh of the North of Scotland and Town and County Bank Limited and George Edward Dudgeon residing at Almond Hill Kirkliston Linlithgowshire both at Edinburgh on the twenty-second before these witnesses Margaret Graham Henderson and James Conocher Allan both clerks in the Edinburgh office of said bank.

A.D. 1922.

FREDERICK DOUGLAS Witness.
CHARLES ROSS Witness.

W. MEFF Lord Provost.
HENRY J. GRAY Senior Baillie.
W. GORDON Town Clerk.

L.S.

HILDA C. CROMBIE Witness.
JEAN M. MACKIE Witness.

ROBERT W. WALKER Director.
WILLIAM GARDEN Director.
A. SCOTT FINNIE Clerk.

L.S.

M. G. HENDERSON Witness.
JAMES C. ALLAN Witness.

} J. MILNE HENDERSON.
} G. E. DUDGEON.

STEWART S. BUYERS Witness.
NORMAN S. ROSE Witness.

JAMES H. EDWARDS.

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